JHARKHAND/ HEMANT SOREN

FIGHTING LAW WITH POLITICS

By Amitabh Srivastava

Hemant Soren was never a cricketer, but with his back to the wall in the face of mounting legal challenges, the Jharkhand chief minister seems to have improvised a perfect T20 batsman's strategy of stepping out to neutralise the adverse swing. The strategy was visible once again on November 11—just a day after the Enforcement Directorate (ED) issued him fresh summons for questioning in an alleged mining scam—when he convened a special assembly session to clear two crucial bills that are expected to earn him much popularity. One increases job reservation in Jharkhand to 77 per cent, and the other fixes 1932 as the cutoff year to determine domicile status and eligibility to be defined as a local resident. The strategy is clear—legal challenges are to be countered with political moves to gain an upper hand in the what-if scenarios.

Soren had skipped an earlier ED summons to appear for questioning on November 3, describing it as the central agency's attempt to show its might. Having dared the ED to arrest him, Soren said he had no reason to be afraid of central agencies like the ED or the CBI. "We will wipe out the BJP even from jail," he said on November 11. The statement, however, also hinted at a resigned realisation that his legal troubles are only expected to increase. A senior leader of the Jharkhand Mukti Morcha claims the ruling JMM-Congress-Rashtriya Janata Dal alliance does have a Plan B in case the ED arrests Soren or if Governor Ramesh Bais recommends his disqualification in line with the Election Commission's reported advice. "We will immediately seek judicial relief. Alternatively, Soren may pick wife Kalpana, mother Rupi or father Shibu Soren as his stopgap successor. Letters of support for prospective CM candidates have been taken from all alliance MLAs," says the JMM insider.

The ED wants to question Soren in connection with its ongoing probe into alleged money-laundering in cases of illegal mining in Jharkhand. Besides filing a prosecution complaint against Soren's political aide Pankaj Mishra, who was arrested in July, the agency informed a special court in Ranchi that the mining scam was estimated to be to the tune of Rs 1,000 crore. The ED, which had arrested IAS officer Pooja Singhal in a money-laundering case related to alleged diversion of MNREGA funds, had later shifted focus to illegal mining.

With JMM leaders apprehensive that it may also reach the CM's doorsteps, Soren has moved quickly on the reservation and domicile bills. He knows that even after the bills are enacted into law, they may be challenged in court unless the Centre includes them in the Ninth Schedule, putting them beyond judicial scrutiny. But if the BJP-led Centre shows any reluctance on this front, it will give Soren a chance to whip up popular resentment against the saffron party in the state, where it is his main rival.

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The Jharkhand CM, indeed, has his hands so full with challenges that even the good news comes with riders. On November 7, when the Supreme Court ruled that the Jharkhand High Court



OPEN DARE Soren skips the ED summons on Nov. 3

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